



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7286 (EXTENSION)
SECOND REVISION July 11, 1979

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7286 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Suzanne Hespelet
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 31 1994

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Liquid Carbonic Industries Corporation
Oak Brook, IL

June 20, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

EXPIRED- NO RENEWAL NOT Active



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590
DOT-E 7286
(SECOND REVISION)

Liquid Carbonic Corporation, Chicago, Illinois, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain nonliquefied compressed gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment in cylinders which are over 35 years old and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Liquid Carbonic Corporation's application of February 22, 1979, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Compressed gases specified in 49 CFR 173.34 (e)(15)(ii).
4. PROPER SHIPPING NAME (49 CFR 172.101). By the name specified or compressed gas, n.o.s. as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.34(e)(15)(i).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo-only aircraft.
7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification 3A or 3AA cylinders and cylinders marked ICC-3, 3A or 3AA not exceeding 125 pounds water capacity complying in all respects with 49 CFR 173.34 (e)(15) except age of cylinder is over 35 years. In addition, cylinders must be in conformance with Liquid Carbonic Corporation's Red Book Letter RC-1, as revised March 9, 1976.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
 - b. A copy of this exemption must be carried aboard each vessel or aircraft used to transport packages covered by this exemption.
 - c. Each cylinder must be durably and legibly marked "DOT-E 7286".
9. REPORTING REQUIREMENTS. Any incident involving loss of the contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. EXPIRATION DATE. March 16, 1981.

Issued at Washington, D.C.:

Michael L. Roberts
Michael L. Roberts

Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

7/11/79

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions
Branch.

Dist: B of E, USCG, FHWA, FRA